

complaint

Mr B complains that Royal & Sun Alliance Insurance Plc (RSA) won't pay his claim for storm damage to his house through the roof under his home insurance. He's also unhappy that it won't take responsibility for defective repairs previously done by its contractors.

background

In February 2016 Mr B contacted RSA to make a claim for storm damage to his roof. It sent out a contractor to inspect, who found that the damage wasn't caused by a storm but was the result of poor workmanship to or design of particularly the valleys and the gutters. Mr B said that this was the result of repairs done in 2013. RSA sent out the contractors who'd done the repairs to inspect. They denied that the defects had anything to do with their repairs, so RSA declined to pay the claim.

On referral to this service our adjudicator didn't uphold the complaint. Mr B disagreed and asked for the matter to be considered by an ombudsman.

my findings

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

There are two elements to Mr B's claim – the storm damage and the responsibility for the poor workmanship.

When considering storm damage we must first of all decide whether there was a storm on the day in question. As Mr B was told by RSA storm consists of exceptionally heavy rainfall usually accompanied by high winds. The records for around the time of the claim don't show any heavy rainfall, at least none that would constitute a storm. There were some very high winds about a week before. But in view of the fact that no physical damage has been shown to have affected the roof I can't say that those winds caused any damage.

But even if there was a storm, we must also decide whether the damage was consistent with storm damage. Here the contractors sent out by RSA both identified poor design and/or poor workmanship. This concerned the areas where the valley met the gutter. They said there was a gap between the roof and the boxed guttering. The contractors denied that the leak in the roof had anything to do with the work they'd carried out. As the policy excludes "*any loss damage...caused by or resulting from poor or faulty design, workmanship or materials*" RSA won't pay the claim.

I can't see that there's any evidence that the damage was caused by or was consistent with storm damage. It has been pointed out that there is staining to the external wall which would tend to show that the matter has been going on for some time, rather than being caused by a single storm.

Mr B believes that the damage was due to faulty repairs. He has explained that, the property being built in 1998, there's no evidence of any leak before the 2013 claim. On the other hand the damage wasn't noticed until 2016. I have to rely on expert's reports to inform me as to the cause of damage. The only "expert" report I have seen is from the contractor sent out and some photos taken by the contractor (on inspection in 2016) who carried out the original

repair. So whilst I understand Mr B's points he hasn't been able to show me any other expert evidence to show that the repairs done in 2013 were defective.

Mr B's property suffered internal damage. But as I can't say that there was any particular storm at the time of the claim, it's likely that the leak had been occurring gradually. So I can't say that the internal damage was caused by a storm.

So overall I don't think that it's been shown that there was any storm damage to Mr B's roof or that the leak was related to the previous repairs.

my final decision

I don't uphold the complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mr B to accept or reject my decision before 26 September 2016.

Ray Lawley
ombudsman